

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ALEJANDRO GUZMAN and ODALIZA SANCHEZ,

SUMMONS

Plaintiffs,

Plaintiff designates New York County as the place of trial.

-against-

The basis of venue is the county in which the cause of action arose.

THE CITY OF NEW YORK, DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE INVOLVED IN THE ARREST OF THE PLAINTIFFS on April 2, 2018, NAMED HEREIN AS JOHN/JANE DOES 1-20

Defendants.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer on Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 9, 2020

SULLIVAN & BRILL, LLP
Attorneys for Plaintiff



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TO:

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NEW YORK CITY POLICE DETECTIVE RICARDO MANTILLA, SHIELD #523
TAX ID # 942118
c/o New York City Police Department
1 Police Plaza
New York, NY 10004

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ALEJANDRO GUZMAN and ODALIZA SANCHEZ,

Plaintiffs,

-against-

**VERIFIED
COMPLAINT**

**JURY TRIAL
DEMANDED**

THE CITY OF NEW YORK, DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE INVOLVED IN THE ARREST OF THE PLAINTIFFS on April 2, 2018, NAMED HEREIN AS JOHN/JANE DOES 1-20, on April 2, 2018, and THE NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICER NAMED HEREIN AS JOHN/JANE DOES 1-10

Defendants.

Plaintiffs, by their attorneys, SULLIVAN & BRILL, LLP, complaining of
Defendants, alleges:

1. On April 2, 2018, Plaintiffs ALEJANDRO GUZMAN and ODALIZA SANCHEZ were residents of the County of New York, State of New York.
2. Plaintiffs are currently residents of the County of Bronx, State of New York.
3. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK, was and still is a municipal corporation organized and existing under the laws of the State of New York.

4. On or about September 10, 2019, Plaintiff ALEJANDRO GUZMAN served a Notice of Claim in writing upon THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK acknowledged receipt of the Notice of Claim in a letter dated September 10, 2019.

6. At least thirty (30) days have elapsed since the service of the Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one (1) year and ninety (90) days after the happening of the event upon which the claims are based.

7. Plaintiff ALEJANDRO GUZMAN has complied with the request of the municipal defendants for an oral examination pursuant to Section 50-h of the General Municipal law by testifying at a 50-h hearing on December 18, 2010.

8. On or about September 24, 2019, Plaintiff ODALIZA SANCHEZ filed an Order to Show Cause seeking leave to file a late Notice of Claim.

9. That on January 23, 2020, that Order to Show Cause was granted and the Notice of Claim attached to the Order to Show Cause was deemed served as of that date.

10. The Decision and Order granting the Order to Show Cause for leave to serve a late Notice of Claim was served with Notice of Entry on the THE CITY OF NEW YORK on January 29, 2020.

11. At least thirty (30) days have elapsed since the service of the Notice of Claim prior to the commencement of this action and adjustment of

payment thereof has been neglected or refused, and this action has been commenced within one (1) year and ninety (90) days after the happening of the event upon which the claims are based, excluding time tolled in statute as directed in Executive Order 202.8 et seq.

12. More than 30 days have elapsed since Defendant, THE CITY OF NEW YORK, was served with the Notice of Claim, and it has not noticed a statutory hearing; more than 90 days have elapsed since the filing of the Notice of Claim and no statutory hearing has been conducted. Therefore, the hearing has been deemed waived.

13. On April 2, 2018, Plaintiffs resided at 280 Madison St., Apt 2F New York, NY.

14. Plaintiffs currently reside at 3535 Rochambeau Avenue, Apartment 4K, Bronx, New York 10461.

15. At all times mentioned hereinafter, THE CITY OF NEW YORK (“the City”), its agents, servants, and employees operated, maintained and controlled the New York City Police Department hereinafter referred to as the “NYPD”, including all the police officers and employees thereof.

16. The District Attorney of New York County, Cyrus Vance, was and is a municipal policymaker in making decisions other than when to prosecute, when acting as the manager of the district attorney’s office. He and/or through his authorized delegates, at all relevant times had final authority, and constituted a City policymaker for whom the City is liable, with respect to such conduct.

17. NEW YORK CITY POLICE OFFICER DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE INVOLVED IN THE ARREST OF THE PLAINTIFFS, on April 2, 2018, NAMED HEREIN AS JOHN/JANE DOES 1-20 (hereinafter “Defendant Police Officers”). were and are police officers employed by THE CITY OF NEW YORK and at all times herein were acting in such capacity as the agents, servants, and/or employees of THE CITY OF NEW YORK within the scope of their employment and under the direction of THE CITY OF NEW YORK and the NYPD.

18. At all times hereinafter mentioned and specifically on or about April 2, 2018, at approximately 2:00 PM (hereinafter “date of incident”) at or near the location of 225 East 82nd Street, 3rd Floor New York, New York, State of New York (hereinafter “location of incident”), Defendant Police Officers, individually and collectively were acting within the scope of their employment and under the direction of THE CITY OF NEW YORK and the NYPD as their agents, servants, and/or employees. Consequently, THE CITY OF NEW YORK is liable under the doctrine of *respondeat superior* for the officers’ tortious actions

19. On the date of incident and at all relevant times hereunder, Defendant Police Officers acted as police officers and were required to follow the rules and regulations as contained in the NYPD Patrol Guidelines.

20. On or about the date of incident, Defendant Police Officers were present at the vicinity of the location of incident. Specifically, they were inside apartment 3A, at 225 East 82 Street.

21. At approximately 2:00 PM, Plaintiffs were in the hallway outside the door of Apartment 3A.

22. On or about the date and time of the incident, in the hallway outside of apartment 3A, at 225 East 82 Street, Plaintiffs were wrongfully touched, grabbed, searched, handcuffed, seized, and arrested by THE CITY OF NEW YORK police officers without an arrest warrant or search warrant.

23. On the date of arrest, Plaintiffs were criminally processed, fingerprinted and held at a police precinct.

24. While at the precinct, Plaintiffs were strip-searched.

25. Plaintiffs were questioned by police officers without having their *Miranda* rights read to them.

26. At some point, Plaintiffs were transported to New York County Central Booking.

27. While being held at the precinct and/or Central Booking both Plaintiffs required medical treatment and were taken to the hospital.

28. On or about April 3, 2019, Plaintiffs were brought before a judge. At that time, Bail was set at \$100,000.00 for Plaintiff ALEJANDRO GUZMAN, and \$25,000.00 for Plaintiff ODALIZA SANCHEZ.

29. Neither Plaintiff could meet the bail requirement and both were sent to Rikers Island.

30. While being held at Rikers Island, Plaintiff ODALIZA SANCHEZ was physically and/or sexually accosted on more than one occasion by other inmates.

31. On or about April 6, 2018, Plaintiff ODALIZA SANCHEZ was brought back to court, at which time she was released on her own recognizance.

32. As a result of the prosecution, she was compelled to hire an attorney and return to court repeatedly over the next nine months. On February 28, 2019, all criminal charges against Plaintiff ODALIZA SANCHEZ were dismissed.

33. Plaintiff ODALIZA SANCHEZ was never indicted, was innocent of all charges and had committed no crime.

34. Plaintiff ALEJANDRO GUZMAN remained in custody at Rikers Island from the time of his arraignment until on or about June 25, 2019, at which time all criminal charges against him were dismissed.

35. In addition to being wrongfully detained for nearly 15 months, as a result of the prosecution Plaintiff ALEJANDRO GUZMAN was compelled to hire an attorney at a cost of over \$50,000, yet Plaintiff ALEJANDRO GUZMAN was never indicted, was innocent of all charges and had committed no crime.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK, DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE INVOLVED IN THE ARREST OF THE PLAINTIFFS on April 2, 2018, NAMED HEREIN AS JOHN/JANE DOES 1-20, FOR MALICIOUS PROSECUTION

36. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked “1” through “35” with the same force and effect as if more fully and at length set forth herein.

37. On or about the date of incident and from that time until all charges were dismissed against Plaintiffs, which were favorable terminations for the accused, despite knowing that probable cause did not exist, Defendants deliberately and maliciously prosecuted Plaintiffs by arresting Plaintiffs and signing criminal complaints for the purpose of falsely accusing Plaintiffs of violations of the criminal laws of the State of New York.

38. Defendants, jointly and severally, their agents, servants, and/or employees failed to take reasonable steps to stop the prosecution of Plaintiffs and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney’s office to induce prosecution of Plaintiffs; due to the absence of probable cause, malice can be inferred.

39. The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by Defendants.

40. As a result of the malicious prosecution, Plaintiffs were deprived of their liberty, and suffered the cost, humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

41. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF
NEW YORK FOR NEGLIGENCE REGARDING THE ACTIONS OF ITS
EMPLOYEES**

42. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked “1” through “41” with the same force and effect as if more fully and at length set forth herein.

43. That Defendant CITY OF NEW YORK was negligent, careless and reckless in hiring retaining, supervising, promoting, and training its employees, and the officers herein, in that said officers, as employees of the City of New York, were not qualified to be hired, retained, or promoted as police officers and lacked the experience, skill, training, and ability to be employed by Defendant CITY OF NEW YORK.

44. That Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring, retaining, promoting, and training practices; in that Defendant CITY OF NEW YORK failed to adequately test, analyze test results, and/or investigate said officers’ backgrounds; the CITY OF NEW YORK failed to adequately screen said officers; failed to adequately monitor officers; failed to properly discipline officers who violate the NYPD Patrol Guidelines; failed to properly train and retrain officers; and in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent, and reckless.

45. That the aforesaid occurrence, malicious prosecution, and the resulting injuries to body and mind, were caused wholly and solely by reason of the negligence or deliberate indifference of Defendant CITY OF NEW YORK, its agents,

servants, and/or employees without any negligence on the part of Plaintiffs contributing thereto.

46. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY
OF NEW YORK FOR VIOLATION OF PERSONAL
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 and
*MONELL v. DEPT. OF SOCIAL SERVICES OF CITY OF NEW
YORK*, 436 U.S. 658 (1978)**

**Policy, Practice and Custom of deliberate indifference to police
misconduct including false arrest, employing arrest quotas, falsifying
police records and evidence, perjury and false statements by police**

47. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked “1” through “46” with the same force and effect as if more fully and at length set forth herein.

48. That on the date of incident and at the location of incident, the City and Defendant-officers were present as part of their regular and official employment as police officers for the City and were acting under the color of law and within the scope of their employment.

49. That the City caused, developed, maintained, and/or created a policy and/or procedure and/or custom and/or practice, or decision of a final policymaker, and acted with deliberate indifference to patterns and/or police practices violating constitutional rights of its citizens, which caused the violations of Plaintiffs’ rights, including the following and as outlined in more detail below: improperly holding, imprisoning, and/or detaining individuals without probable cause and justification; excessive and arbitrary use of force; failing to train and

retrain officers in the use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence and investigate when allegations of police misconduct are alleged; condoning silence within the police department regarding misconduct; failing to properly supervise, train, investigate, or discipline officers; falsely swearing out criminal complaints and police paperwork; in instituting a policy, custom, and/or practice of arrest quotas and/or productivity goals; falsifying evidence and NYPD paperwork; committing perjury; failing to respond to evidence of corruption; and failing to intervene to prevent the above-mentioned practices.

50. That as to all of the violations alleged in this third cause of action, the City knew to a moral certainty that its employees would confront situations like the subject incident involving Plaintiffs, in which employees would be called on to make decisions regarding proper search and seizure, probable cause for arrest, initiating prosecution, falsifying paper work and providing false statements.

51. That as to all of the violations alleged in this third cause of action, the City has a history of its employees mishandling similar situations similar to the subject incident, which present City's employees with choices of the sort that training or supervision would make less difficult.

52. That as to all of the violations alleged in this third cause of action, the wrong choice by City employees will frequently cause the deprivation of citizen's constitutional rights, as in the subject incident.

53. That said acts constituted an illegal seizure of Plaintiffs and deprived them of their rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

54. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States of America, violated Plaintiffs' right to liberty, to be secure in their persons, and Defendants used excessive and unlawful force.

55. The existence of aforesaid unconstitutional customs, policies, patterns, and/or practices may be inferred from repeated occurrences of similar wrongful conduct, as documented below.

Evidence of a history of false arrest/improper seizure and search

56. The following are instances of an unconstitutional custom, policy, pattern, and/or practice of THE CITY OF NEW YORK and/or the NYPD with respect to a Stop and Frisk program and/or arrests without probable cause:

a) According to the New York Times in an article dated April 1, 2013, in 2010 Police Commissioner Raymond Kelly meets with then-governor David Paterson and states that young black and Hispanic men were the focus of stop and frisks to "instill fear in them, every time they leave their home they could be stopped by the police."

b) In a class action lawsuit David Floyd, et al. v. City of New York, et al., 08 CV-1034 (S.D.N.Y.), in a decision filed August 12, 2013, Justice Scheindlin found the City of New York liable for violating plaintiffs' Fourth and Fourteenth

Amendment rights, acting with deliberate indifference toward the NYPD's practice of making unconstitutional stops and adopting a policy of indirect racial profiling. The result of these practices was found to be disproportionate and discriminatory stopping of black and Hispanics in violation of the Equal Protection Clause. Justice Sheindlin concluded that the City of New York's highest officials turned a blind eye to the evidence that officers are conducting stops in a racially discriminatory manner. Justice Sheindlin ordered that NYPD police officers are not permitted to target people for stops based on their race.

The NYPD's history with arrest quotas

57. The following are instances of an unconstitutional custom, policy, pattern, and/or practice of THE CITY OF NEW YORK and/or the NYPD with respect to arrest quotas:

a) Schoolcraft v. City of New York, 10-CV-6005 (RWS) (S.D.N.Y.):

police officer alleges that he was arrested and committed to a psychiatric facility in retaliation for exposing an NYPD police precinct's policies and practices of summons and arrest quotas, falsifying evidence, and perjury.

b) In a class action lawsuit David Floyd, et al. v. City of New York, et al., 08 CV-1034 (S.D.N.Y.), in a decision filed August 12, 2013, Justice Sheindlin found that in a Police Officer Performance Objectives Operation Order dated October 17, 2011, Commission Raymond Kelly directed that "Department managers can and must set performance goals - relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals . . . Uniformed members who do not demonstrate activities . . . or who fail to engage in

proactive activities . . . will be evaluated accordingly and their assignments reassessed.” Justice Scheindlin also cited the deposition testimony of Police Officer Adhyl Polanco of the 41st precinct, stating that commanding officers set quotas for arrest.

c) Bryant v. City of New York, 22011/2007 (Sup. Ct., Kings Co.): jury finds that NYPD officers acted pursuant to a City policy regarding the number of arrests officers were expected to make.

d) The New York City Office of Collective Bargaining concluded that police officers in Brooklyn’s 75th Precinct were required to issue four parking tickets, three moving violation citations, three “quality-of-life” summonses, make one arrest and two stop-and-frisks each month. Arbitrator Bonnie Siber Weinstock found that the NYPD maintained a “summons quota for traffic violations in the precinct and penaliz[ed] officers for failing to meet the stated number of traffic citations.” She ordered the city to cease and desist from the practice.

NYPD police officers’ history of falsifying records and evidence, making false statements and committing perjury

58. The following are instances of an unconstitutional custom, policy, pattern, and/or practice of THE CITY OF NEW YORK and/or the NYPD with respect to falsifying police records and evidence, committing perjury, and negligent hiring, training, retention, and disciplining and/or failing to respond to evidence of corruption:

a) In New York County Supreme Court People v. William Eiseman (Ind. No. 2999-2010), NYPD Sergeant William Eiseman pled guilty to perjury and

falsifying police records, “admit[ing] to faking a marijuana case against one man and cocaine-related charges against another – and training young [officers] to falsify paperwork to sidestep legal safeguards.” Supreme Court Justice Juan Merchan commented that Sgt. Eiseman’s admissions “paint a picture of a police officer who has challenged and undermined the integrity of the entire system we have here.”

b) In late 2009, a former NYPD officer in the Bronx, Pedro Corniel, was charged with perjury for claiming to have caught a burglar “red-handed,” when, in fact, two other officers had made the arrest and handed the arrest off to Mr. Corniel. The suspect was released.

c) Lin v. City of New York, 09-CV-1936 (PGG) (S.D.N.Y.): officers arrest person for photographing an arrest of a bicyclist and sign criminal complaint with facts contradicted by video evidence.

d) Colon v. City of New York, 09-CV-0008 (E.D.N.Y.) Order dated November 25, 2009, denying THE CITY OF NEW YORK’S motion to dismiss on Iqbal grounds in case where police officers were fired and prosecuted for falsifying evidence in a an alleged buy and bust operation, the Honorable District Court Judge Weinstein wrote: “Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the

department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.”

e) In response to the Honorable Judge Weinstein’s ruling of November 2009 Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noted a “widespread... custom or policy by the city approving illegal conduct” such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, “When it happens, it’s not for personal gain. It’s more for convenience.”

f) People v. Pogan, 06416-2008 (Sup. Ct., N.Y. Co.): police officer purposefully swore out false complaint and was convicted of falsifying police records.

g) MacNamara v. City of New York, 04-CV-9216 (RJS) (JCF) (S.D.N.Y.): court ordered THE CITY OF NEW YORK to disclose all arrest reports related to the arrests of 1,800 people at the 2004 Republican National Convention as evidence of perjured sworn statements by police officers to cover-up false arrests.

h) Powers v. City of New York, 04-CV-2246 (NGG), 2007 U.S. Dist. LEXIS 27704 (E.D.N.Y.): police officer alleges unlawful retaliation by NYPD officers after testifying about corruption within the NYPD.

i) Ariza v. City of New York, 93-CV-5287 (CPS), 1996 U.S. Dist. LEXIS 20250 at*14 (E.D.N.Y.): police officer alleges retaliation and harassment in response to his allegations about a racially-discriminatory workplace. In deciding a motion for summary judgment, the Court held that the police officer had established proof

of a policy to retaliate against police officers who expose police misconduct and a failure to train in the police department.

j) The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission Report”), dated July 7, 1994, states: “In the face of this problem [of corruption], the [NYPD] allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption control minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputations tainted especially a Department that needs the public’s confidence and partnership to be effective. A weak and poorly resourced anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority which is exactly what the Commission uncovered. This reluctance manifested itself in every component of the Department’s corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment. For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it.”

k) The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded: “Regardless of the motives behind

police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them . . . What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justifies, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.”

1) On March 18, 2018, The New York Times published an article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. The article documents, *inter alia*, the fact that the substantiation of a claim against a police officer will invariably rely on the presence of incontrovertible proof against the officer, and the resulting alarmingly small percentage of officer misconduct claims are substantiated. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the pervasive lying within the NYPD.

m) On September 12, 2019, The New York Times published another article by Mr. Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” This article addressed the unusually high frequency of officers putting in criminal complaints and/or testifying that they perceived the odour of marijuana in order to justify a search that, tellingly, does not result in the recovery of marijuana.

n) On April 24, 2019, The New York Times, in an article titled, “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” reported on the criminal charges brought against Detective Joseph Franco for lying about observing drug transactions on at least three separate occasions. The false statements led to the arrest and imprisonment of three separate defendants. Detective Franco was assigned to the Manhattan South Narcotics Bureau, the same unit involved in the arrest and prosecution of Plaintiffs.

59. Defendants’ actions on the date of incident were performed under the color of the policies, statutes, ordinances, rules, and regulations of the CITY OF NEW YORK.

60. Plaintiffs did not commit any illegal act, either before or at the time they were falsely arrested, maliciously prosecuted, and deprived of their constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. § 1983 and the Constitution of the State of New York.

61. That by reason of the aforesaid, Plaintiffs were subjected to great indignities and humiliation, and pain and distress of mind and body.

62. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE
CITY OF NEW YORK FOR VIOLATION OF PERSONAL
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 and
*MONELL v. DEPT. OF SOCIAL SERVICES OF CITY OF NEW
YORK*, 436 U.S. 658 (1978)**

**Policy, Practice and Custom and/or deliberate indifference of District
Attorney's office allowing and/or encouraging ADAs to keep
defendants in custody during the statutory 30.30 time without any
meaningful investigation or prosecution in order to compel a guilty
plea even in cases with no likelihood of successful prosecution**

63. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "62" with the same force and effect as if more fully and at length set forth herein.

64. Under the principles of municipal liability for federal civil rights violations, the District Attorney of New York County (or his authorized delegates) has final authority and is the City's policymaker in the training, instructing, supervising and disciplining attorneys.

65. The District Attorney of New York County, Cyrus Vance, was and is a municipal policymaker in making decisions other than when to prosecute, when acting as the manager of the district attorney's office. He and/or through his authorized delegates, at all relevant times had final authority, and constituted a City policymaker for whom the City is liable, with respect to such conduct.

66. Prior to and at the time of the initiation of the criminal prosecution against Plaintiffs, and continuing to date, the New York County District Attorney's Office maintained a policy of training and directing Assistant District Attorneys to argue for unreasonable bail in cases in which they were aware of a lack of probable cause for the arrest of the defendants, and that excessive bail was to be requested in cases where there was no likelihood of a successful prosecution, or was deliberately indifferent to the practice.

67. Prior to and at the time of the initiation of the criminal prosecution against Plaintiffs, and continuing to date, the New York County District Attorney's Office maintained a policy of training and directing Assistant District Attorneys to allow cases with no likelihood of success to be maintained on the courts' calendars during the statutory 30.30 time without any meaningful investigation or attempt to make the cases ready for trial, or was deliberately indifferent to this practice.

68. Prior to and at the time of the initiation of the criminal prosecution against Plaintiffs, and continuing to date, the New York County District Attorney's Office maintained a policy of training and directing Assistant District Attorneys to use the fact that defendants were incarcerated and unable to make bail to compel guilty pleas in cases in which there was no likelihood of bringing to trial, or was deliberately indifferent to this practice.

69. Prior to and at the time of the initiation of the criminal prosecution against Plaintiffs, and continuing to date, the New York County District Attorney's Office maintained a policy of rewarding and/or promoting ADAs

who obtained higher percentages of convictions, thus incentivizing ADAs to allow cases to proceed even when there was no likelihood of a successful prosecution.

70. That as to all of the violations alleged in this fourth cause of action, the City knew to a moral certainty that its employees would confront situations like the subject incident involving Plaintiffs, in which they would have to make decisions regarding requesting for bail, choosing to investigate, indicting and making a case ready for trial, and attempting to use pre-indictment incarceration as leverage to compel a guilty plea.

71. That as to all of the violations alleged in this fourth cause of action, the City, through its policymakers, has a history of its employees mishandling similar situations similar to the subject incident, which present City's employees with choices of the sort that training or supervision would make less difficult.

72. That as to all of the violations alleged in this fourth cause of action, the wrong choice by City employees will frequently cause the deprivation of citizen's constitutional rights, as in the subject incident.

Evidence of the City's policies

73. On September 29, 2014, the New Yorker published an article titled "Before the Law," which documented the case of Kalif Browder, a young man arrested and accused of stealing a backpack in 2010. Mr. Browder was held at Rikers Island for over three years, during which he made over 30 court appearances in front of eight different judges. His case was never brought to trial and was ultimately dismissed. The Browder case was not a single isolated incident. The New

York Times reported that in April of 2015, of the approximately 10,000 inmates at Rikers Island, more than 400 people had been awaiting trial for at least two years.

74. The Criminal Justice Association, a nonprofit organization that conducts pretrial screening for the New York Court System, reported that from 2006 through 2010, more than 10,000 people accused of a felony in New York City sat in jail before the trial started, only to be acquitted or have the case dismissed.

75. The Independent Commission On New York City Criminal Justice And Incarceration Reform noted in 2017 that, “When defendants are detained pretrial, the prosecutor inevitably gains leverage.”

76. The Manhattan DA’s website indicates that, in 2018, 3847 defendants had their cases dismissed on 30.30 grounds (speedy trial), and another 6309 defendants’ cases were granted evidence dismissals. With respect to felony charges, these dismissals constituted over 26% of felony cases.

77. The website does not disclose the statistics regarding how many of the 3201 convictions obtained in felony cases obtained by plea bargain were attributable to defendants in pre-trial custody, nor does the site disclose how many of the more than 10,000 dismissals were granted while the defendants were in pre-trial custody.

78. In April of 2019, the Vera Institute of Justice, in a brief titled “Justice Denied: the Harmful and Lasting Effects of Pretrial Detention,” discussed two studies in New York that showed significantly higher likelihood of convictions for defendants in pretrial detention. Both studies indicated “that at least part of the effect of pretrial detention on conviction is due to a greater likelihood that those

who are detained will plead guilty—regardless of the strength of their defense, or even if they did not commit the alleged offense.”

79. In passing broad reforms as part of the 2020 budget bill, the New York State legislature acknowledged the flawed bail system and abuses of the 30.30 (speedy trial statute).

80. In response to the legislature’s attempt to address the broken system, the New York Prosecutors Training Institute, the training arm of the District Attorneys Association of the State of New York has been presenting a program by Jed Painter, an assistant district attorney from Nassau County that attempts to circumvent the new rules by helping prosecutors find legal loopholes to hold more defendants on bail and to delay trials.

81. That said the policies and procedures led to the illegal seizure of Plaintiffs, their wrongful imprisonment, their wrongful prosecution and deprived them of their rights and liberties as set forth the Fourth, Sixth and Fourteenth Amendments to the Constitution of the United States of America, the Constitution of the State of New York and under 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

82. That by reason of the aforesaid, Plaintiffs were subjected to great indignities and humiliation, and pain and distress of mind and body.

83. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys’ fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

**AS AND FOR A FIFTH CAUSE OF ACTION CAUSE OF ACTION
FOR VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42
U.S.C. § 1983 AS AGAINST DETECTIVE RICARDO MANTILLA,
SHIELD #523 TAX ID # 942118, NEW YORK CITY POLICE
OFFICERS WHO WERE INVOLVED IN THE ARREST OF THE
PLAINTIFFS on April 2, 2018, NAMED HEREIN AS JOHN/JANE
DOES 1-20**

84. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked “1” through “83” with the same force and effect as if more fully and at length set forth herein.

85. That at all times hereinafter mentioned, Defendant-officers were each employed by Defendant CITY OF NEW YORK and/or the NYPD and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules, and regulations of the City of New York.

86. That at all times hereinafter mentioned, Defendant-officers were acting pursuant to orders and directives from Defendant CITY OF NEW YORK.

87. That during all times hereinafter mentioned, Defendant-officers acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of THE CITY OF NEW YORK and/or the New York City Police Department and that Defendant-officers were acting under the color and pretense of law and engaged in the illegal conduct set forth in this complaint to the injury of Plaintiffs and deprived them of the rights, privileges, and immunities secured to him by the First, Fourth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States, the laws of the United

States, the Constitution of the State of New York, the laws of the State of New York, and 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

88. That the unlawful and illegal conduct of Defendant-officers deprived Plaintiffs of the following rights, privileges, and immunities secured to them by the Constitution of the United States and of the State of New York:

a) The right of Plaintiffs to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;

b) The right of Plaintiffs not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States;

c) The right to have freedom of speech;

d) The right to a speedy trial;

e) The right to be free from cruel and unusual punishment;

f) The right to due process of law.

89. That by reason of the aforesaid violations, use of force, seizure of Plaintiffs' persons, their false arrest and false imprisonment, assault and battery, falsifying evidence, and malicious prosecutions, Defendant-officers involved in the arrest and prosecution of Plaintiffs, violated Plaintiffs' rights and privileges as provided to them in the Constitution of the United States of America and the Constitution of the State of New York, and laws thereto. Defendant-officers and THE CITY OF NEW YORK under the doctrine of *respondeat superior*, violated 42 U.S.C. § 1983.

90. That by reason of the aforesaid, Plaintiffs were injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain.

91. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdiction of the lower courts and seeks compensatory damages, plus punitive damages, costs, attorneys' fees, expert fees, as set forth and provided by 42 § U.S.C. 1988, and such other relief as the court may deem just and proper.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS
AGAINST DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX
ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE
INVOLVED IN THE ARREST OF THE PLAINTIFFS on April 2,
2018, NAMED HEREIN AS JOHN/JANE DOES 1-20 FOR FAILURE
TO INTERVENE**

92. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "91" with the same force and effect as if more fully and at length set forth herein.

93. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe or have knowledge that another member of the NYPD or other law enforcement agency violated a civilian's constitutional right(s).

94. Defendant-officers witnessed and/or had knowledge of unlawful and/or unconstitutional arrest of Plaintiffs. Both the arrest of and initiation of criminal prosecution against Plaintiffs were without probable cause or other legal

justification and were based on facts known to the officers to be false. However, Defendant-officers failed to take any action or make any effort to intervene, halt, or protect Plaintiffs from being unlawfully, unconstitutionally, and/or wrongfully arrested and prosecuted.

95. That by reason of the aforesaid, Plaintiffs were injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

96. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR VIOLATION
OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS
AGAINST DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX
ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE
INVOLVED IN THE ARREST OF THE PLAINTIFFS on April 2,
2018, NAMED HEREIN AS JOHN/JANE DOES 1-20 FOR ABUSE
OF PROCESS**

97. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked "1" through "96" with the same force and effect as if more fully and at length set forth herein.

98. By the conduct and actions described above, Defendant-officers employed regularly issued process against Plaintiffs compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiffs without economic or social excuse or justification, and Defendant-officers were seeking a collateral advantage (namely, the attainment of their

productivity goals or arrest quotas) or corresponding detriment to Plaintiffs, which was outside the legitimate ends of the process. The acts and conduct of Defendant-officers were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the United States of America and the State of New York.

99. That by reason of the aforesaid, Plaintiffs were injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

100. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

AS AND FOR AN EIGHTH CAUSE OF ACTION BY PLAINTIFF ODALIZA SANCHEZ AND AS AGAINST THE CITY OF NEW YORK, DETECTIVE RICARDO MANTILLA, SHIELD #523 TAX ID # 942118, NEW YORK CITY POLICE OFFICERS WHO WERE INVOLVED IN THE ARREST OF THE PLAINTIFFS on April 2, 2018, NAMED HEREIN AS JOHN/JANE DOES 1-20 FOR LOSS OF SOCIETY, COMPANIONSHIP AND SERVICES

101. Plaintiff ODALIZA SANCHEZ repeats. Reiterates and realleges each and every allegation contained in paragraphs marked “1” through “100” with the same force and effect as if more fully and at length set forth herein.

102. At all times from the date of incident forward, ODALIZA SANCHEZ and ALEJANDRO GUZMAN were husband and wife.

103. That ODALIZA SANCHEZ was entitled to companionship services and society of ALEJANDRO GUZMAN.

104. That ALEJANDRO GUZMAN was responsible for the care, maintenance and medical expenses of ODALIZA SANCHEZ.

105. That as a result of the above, ODALIZA SANCHEZ was deprived of the society, companionship and services of husband, ALEJANDRO GUZMAN, while he was wrongly imprisoned due to the actions of Defendants.

106. As a result of the foregoing, Plaintiff, ODALIZA SANCHEZ, has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs demand judgment against Defendants in an amount having a present value which exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction of this matter, together with interest, costs and disbursements, plus attorney's fees and such other relief as the court deems just and proper.

Dated: New York, New York
June 9, 2020

SULLIVAN & BRILL, LLP
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TO:

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OFFICE OF THE CORPORATION COUNSEL
Attorney for THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DETECTIVE RICARDO MANTILLA, SHIELD #523
TAX ID # 942118
c/o New York City Police Department
1 Police Plaza
New York, NY 10004

ATTORNEY VERIFICATION

State of New York)
) SS.:
County of New York)

STEVEN BRILL, an attorney duly admitted to practice law in the courts of the State of New York, hereby affirms the truth of the following under the penalty of perjury:

That I am a member of the SULLIVAN & BRILL, LLP the attorneys for Plaintiff(s) in the above captioned matter. I have read the foregoing Complaint and know the contents thereof to be true to my own knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) reside(s) in a county outside of the county where your deponent maintains his office for the practice of law.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: Correspondence and conversations with my client and a review of the file maintained by my office regarding this matter.

Dated: New York, New York
June 9, 2020



By: Steven Brill, Esq.